

**El Paso County
Delia Briones
County Clerk**

Instrument Number: 00000000017

r.cobos

Recorded On: 3/19/2026 11:35:43 AM

Number of Pages: 1

Examined and Charged as Follows:

Total Recording: 120.00

*****THIS PAGE IS PART OF THE INSTRUMENT*****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY
because of color or race is invalid and unenforceable under federal law.

File Information

Document Number 00000000017
Receipt Number 1965628
Recorded Date/Time: 3/19/2026 11:35:43
 AM
Station: CCH01-CCK108



State of Texas
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon,
and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones
County Clerk
El Paso County, TX

NOTICE OF TRUSTEE'S SALE

DEED OF TRUST INFORMATION:

Grantor(s)	Maria Del Pilar Ruiz	Deed of Trust Date	December 21, 2012
Original Mortgagee	Mortgage Electronic Registration Systems, Inc. ("MERS"), as beneficiary, as nominee for One Reverse Mortgage, LLC, its successors and assigns	Original Principal	\$226,500.00
Recording Information	Instrument #: 20130001570 in El Paso County, Texas	Original Trustee	G. Tommy Bastian
Property Address	11792 Henry Phipps Dr., El Paso, TX 79936	Property County	El Paso

MORTGAGE SERVICER INFORMATION:

Current Mortgagee	Wilmington Savings Fund Society, FSB, not in its individual capacity but solely as Owner Trustee for Cascade Funding Mortgage Trust HB13	Mortgage Servicer	PHH Mortgage Corporation
Current Beneficiary	Wilmington Savings Fund Society, FSB, not in its individual capacity but solely as Owner Trustee for Cascade Funding Mortgage Trust HB13	Mortgage Servicer Address	1661 Worthington Road, Suite 100, West Palm Beach, FL 33409

SALE INFORMATION:

Date of Sale	05/05/2026
Time of Sale	10:00 AM or no later than 3 hours thereafter
Place of Sale	The El Paso County Coliseum, 4100 E. Paisano Dr, El Paso, TX 79905 or as designated by the County Commissioner's Office in El Paso County, Texas, or if the preceding area is no longer the designated area, at the area most recently designated by the El Paso County Commissioner's Court.
Substitute Trustees	Beverly Mitrisin, Charles Thomas Nations, Taherzadeh, PLLC, Auction.com, Selim Taherzadeh, or Michael Linke, any to act
Substitute Trustees' Address	15851 N. Dallas Parkway, Suite 410, Addison, TX 75001

PROPERTY INFORMATION:

Legal Description as per the Deed of Trust:
LOT 7, BLOCK 453, VISTA DEL SOL UNIT NINETY-SIX, AN ADDITION TO THE CITY OF EL PASO, EL PASO COUNTY, TEXAS, ACCORDING TO THE PLAT THEREOF ON FILE IN VOLUME 60, PAGE 82, REAL PROPERTY RECORDS, EL PASO COUNTY, TEXAS.

The Mortgage Servicer, if not the Current Mortgagee, is representing the Current Mortgagee pursuant to a Mortgage Servicing Agreement.

Default has occurred under the Deed of Trust and all sums secured by the Deed of Trust were declared immediately due and payable. The Beneficiary has, or caused another to, removed the Original Trustee and appointed Substitute Trustees. On behalf of the Mortgagee, Mortgage Servicer, and Substitute Trustees, the undersigned is providing this Notice of Trustee's Sale.

The sale will be conducted as a public auction to the highest bidder for cash, subject to the provisions of the Deed of Trust permitting the Beneficiary thereunder to have the bid credited to the Note up to the amount of the unpaid debt secured by the Deed of Trust at the time of sale.

The sale will be made expressly subject to any title matters set forth in the Deed of Trust, but prospective bidders are reminded that by law the sale will necessarily be made subject to all other matters of record affecting the property, if any, to the extent that they remain in force and effect and have not been subordinated to the Deed of Trust. The sale shall not cover any part of the property that has been released from the lien of the Deed of Trust. Prospective bidders are strongly urged to examine the applicable property records to determine the nature and extent of such matters, if any.

NOTICE OF TRUSTEE'S SALE

Pursuant to the Deed of Trust, the Beneficiary has the right to direct the Trustee to sell the property in one or more parcels and/or to sell all or only part of the property.

Pursuant to the Texas Property Code, the property will be sold in "as is, where is" condition, without any express or implied warranties, except as to the warranties of title (if any) provided for under the Deed of Trust. Purchasers will buy the property "at the purchaser's own risk" and "at his/her peril", and no representation is made concerning the quality of title to be acquired. Purchasers will receive whatever interest Grantor and Grantor's assigns have in the property.

Pursuant to the Texas Property Code, the Trustee reserves the right to set further reasonable conditions for conducting the Sale. Any such further conditions shall be announced before bidding is opened for the first Sale of the day held by the Trustee or any Substitute Trustee.

The Deed of Trust permits the Beneficiary to postpone, withdraw, or reschedule the sale for another day. In that case, the Trustee, or any subsequently appointed Trustee, need not appear at the date, time, and place of a scheduled sale to announce the postponement, withdrawal, or rescheduling. Notice of the date of any rescheduled foreclosure sale will be reposted and refiled in accordance with the posting and filing requirements of the Texas Property Code. The reposting or refiling may be after the date originally scheduled for this sale.

Interested parties are encouraged to consult counsel of their choice prior to participating in the sale of the property.

The U.S. Financial Crimes Enforcement Network (FinCEN) has implemented a new Anti-Money Laundering Rule (the "Rule"), found at 89 FR 70258 and 31 CFR 1031.320. The Rule applies to certain non-financed residential real estate sale transactions (including nonjudicial foreclosures) where the transfer is to a legal entity or trust. More information regarding the Rule can be found at:

<https://www.fincen.gov/rre>

You are encouraged to consult with your own independent legal counsel if you have questions about how the Rule affects your transactions.

If the property being purchased is residential real property and the Purchaser is a legal entity or trust, then the sale is conditional and contingent upon the Purchaser, **WITHIN SEVEN (7) DAYS OF THE DATE OF THE FORECLOSURE SALE ("Deadline")** providing the required information for reporting under the Rule to the law firm that was handling the foreclosure on behalf of the mortgagee or mortgage servicer. The specific information you will be required to produce can be found at:

<https://bsaeiling-sandbox.fincen.gov/forms/RERX.pdf>

Purchaser hereby agrees that the Reporting Person has the SOLE RIGHT to use its reasonable discretion to determine if the Purchaser has complied with the conditions of sale regarding the Rule.

THE PURCHASER HEREBY AGREES THAT THE PURCHASER IS SOLELY RESPONSIBLE FOR ANY PENALTIES ASSESSED AND/OR INCURRED FOR INCOMPLETE AND/OR INACCURATE INFORMATION PROVIDED BY PURCHASER.

THE PURCHASER HEREBY AGREES TO INDEMNIFY THE REPORTING PERSON FOR ANY PENALTIES CHARGED DUE TO THE INACCURACY OF THE REQUIRED INFORMATION OF THE PURCHASER UNDER THE RULE.

Time is of the essence to ensure compliance with the Rule. **IF THE REQUIRED INFORMATION IS NOT FULLY AND COMPLETELY PROVIDED BY THE PURCHASER TO THE REPORTING PERSON, BY THE DEADLINE, THE FORECLOSURE SALE WILL BE RESCINDED PURSUANT TO TEXAS PROPERTY CODE SECTION 51.016.** You are advised to contact the law firm that handled the foreclosure as soon as possible in order to determine the best way to provide the necessary forms and information needed to comply with the Rule.

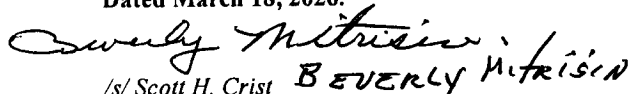
If you are unsure if you can comply with the conditions of sale, including but not limited to the timelines as provided therein, then DO NOT BID. If the sale must be rescinded pursuant to the conditions stated herein, Purchaser hereby agrees that the SOLE and ABSOLUTE remedy for the Purchaser due to the rescission of the foreclosure sale because of the Rule will be the return of the consideration/purchase price paid, MINUS THE REASONABLE AND NECESSARY FEES AND COSTS INCURRED BY THE LAW FIRM FOR RESCINDING THE SALE AND RE-FORECLOSURE OF THE PROPERTY.

NOTICE OF TRUSTEE'S SALE

Assert and protect your rights as a member of the armed forces of the United States. If you or your spouse is serving on active military duty, including active military duty as a member of the Texas National Guard or the National Guard of another state or as a member of a reserve component of the armed forces of the United States, please send written notice of the active duty military service to the sender of this notice immediately.

THIS INSTRUMENT APPOINTS THE SUBSTITUTE TRUSTEE(S) IDENTIFIED TO SELL THE PROPERTY DESCRIBED IN THE SECURITY INSTRUMENT IDENTIFIED IN THIS NOTICE OF SALE THE PERSON SIGNING THIS NOTICE IS THE ATTORNEY OR AUTHORIZED AGENT OF THE MORTGAGEE OR MORTGAGE SERVICER.

Dated March 18, 2026.


/s/ Scott H. Crist BEVERLY MITRISIN
Scott H. Crist

TAHERZADEH, PLLC
15851 N. Dallas Parkway, Suite 410
Addison, TX 75001
Foreclosure@taherzlaw.com
P: (469) 729-6800 F: (469) 828-2772

Return to: Taherzadeh, PLLC
15851 N. Dallas Parkway, Suite 410
Addison, TX 75001

CAUSE NO: 2021DCV3077

IN RE: ORDER FOR FORECLOSURE
CONCERNING

11792 HENRY PHIPPS DRIVE
EL PASO, TEXAS 79936

UNDER TEX. R. CIV. P. 736

PETITIONER:

WILMINGTON SAVINGS FUND SOCIETY,
FSB, NOT IN ITS INDIVIDUAL CAPACITY
BUT SOLELY AS OWNER TRUSTEE FOR
CASCADE FUNDING MORTGAGE TRUST
HB5

RESPONDENT(S):

MARIA DEL PILAR RUIZ

IN THE DISTRICT COURT OF

EL PASO COUNTY, TEXAS

327th JUDICIAL DISTRICT

REVERSE MORTGAGE FORECLOSURE ORDER

On this day, the Court determined it had jurisdiction over the subject matter and the parties to this proceeding. After reviewing the Motion for Final Judgment and Reverse Mortgage Foreclosure Order, the pleadings, the affidavits and the arguments of counsel, the Court finds:

1. Rule 736.8(b)(1) – All material facts establishing Respondents' default are alleged in Applicant's Application for Expedited Foreclosure Under Rule 736 on a Reverse Mortgage, the supporting exhibits, and supporting affidavits. Those facts are adopted and incorporated by reference in this order.

2. Under Tex. Const. Art. XVI §50(k)(6)(D), the advancement of funds on Mortgagors' behalf to pay taxes and/or insurance on the Property in conjunction with Secretary approval qualified as a default event which required the payment of all principal and interest owed under the Loan Agreement. The necessary conditions precedent for Applicant to exercise

its rights under the security instrument by proceeding with a non-judicial foreclosure against the Property has been accomplished.

3. Mortgagor failed on an obligation specified in the loan documents to repair and maintain, pay taxes and assessments on, or insure the homestead property, which accelerated the maturity of the Reverse Mortgage debt and subjected the Property to payment of all principal, interest and other fees and expenses allowed under the Reverse Mortgage made the subject of this proceeding by a nonjudicial foreclosure under Tex. Const. Art. XVI § 50(k)(6)(D) and Tex. Const. Art. XVI §50(k)(11).

4. Rule 736.8(b)(2) – Applicant is the current mortgagee, as that term is defined in Tex. Prop. Code. §51.001, of a valid Texas reverse mortgage “loan agreement,” as that term is defined in Tex. Bus. & Comm. Code §26.02 (“Loan Agreement”) that was created in accordance with Tex. Const. Art. XVI §50(a)(7) and secured by the real property and improvements (the “Property”) commonly known as 11792 Henry Phipps Drive, El Paso, Texas 79936 and more particularly described as:

**LOT 7, BLOCK 453, VISTA DEL SOL UNIT NINETY-SIX, AN
ADDITION TO THE CITY OF EL PASO, EL PASO COUNTY, TEXAS,
ACCORDING TO THE PLAT THEREOF ON FILE IN VOLUME 60,
PAGE 82, REAL PROPERTY RECORDS, EL PASO COUNTY, TEXAS.**

5. Rule 736.8(b)(3) – Mortgagor is subject to this order. Mortgagor(s) is Maria Del Pilar Ruiz, whose last known address is 11792 Henry Phipps Drive, El Paso, Texas 79936. Plus, any and all occupants of 11792 Henry Phipps Drive, El Paso, Texas 79936, whose last known address is the subject Property are also subject to this order.

6. Rule 736.8(b)(4) – Applicant, Wilmington Savings Fund Society, FSB, not in its individual capacity but solely as owner trustee for Cascade Funding Mortgage Trust HB5, its

successors and/or assigns, is entitled to relief on the reverse mortgage lien recorded in the El Paso County public real property records under number 20130001570. Applicant will enforce its security interest pursuant to the terms of the Loan Agreement and Tex. Prop. Code §51.002. The Trustee or Substitute Trustee, G. Tommy Bastian, or his successor, was appointed to conduct the sale under Tex. Prop. Code §51.002.

IT IS THEREFORE ORDERED that Applicant, its successors and/or assigns in accordance with Tex. Const. Art. XVI §50(k)(11) shall enforce the Loan Agreement default by foreclosing its security interest encumbering the Property pursuant to the Loan Agreement or Tex. Prop. Code §51.002;

IT IS FURTHER ORDERED that if a person occupying the Property fails to surrender possession of the premises after foreclosure, Applicant, or its successor in interest, shall be entitled to a Writ of Possession issued in accordance with Tex. R. Civ. P. 310;

IT IS FURTHER ORDERED that Petitioner shall be, and the same hereby is, awarded reasonable and necessary attorneys' fees and costs to be assessed to the loan; and

IT IS FURTHER ORDERED Applicant is entitled to all writs necessary to enforce this Judgment.

All relief not granted herein is denied.

SIGNED this 10 day of Feb, 2022


JUDGE PRESIDING

ORDER PREPARED BY:

GALLOWAY, JOHNSON, TOMPKINS, BURR & SMITH
A Professional Law Corporation

//s// Branch M. Sheppard
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**ATTORNEYS FOR APPLICANT,
WILMINGTON SAVINGS FUND SOCIETY, FSB, NOT
IN ITS INDIVIDUAL CAPACITY BUT SOLELY AS OWNER
TRUSTEE FOR CASCADE FUNDING MORTGAGE TRUST HB5**